

Court No. - 2

Case :- WRIT - C No. - 2309 of 2009

Petitioner :- M/S Kesarwani Sheetalaya And Others

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal, Ravi Kant, Umesh Chandra Kesarwani

Respondent Counsel :- H.P. Dube, B.C. Rai

Hon'ble Ashok Bhushan, J.

Hon'ble Ram Autar Singh, J.

Shri B.C. Rai, learned counsel for the respondents submits that against the interim order dated 18/2/2009, Special leave to Appeal (Civil) No (s). 8769/2009 was filed in the Supreme Court in which the Supreme Court on 07/8/2009 passed an order adjourning the Special Leave to Appeal with a direction that the High Court may proceed with the hearing of the writ petition and even pass final orders. In view of the order of Supreme Court, put up this matter on Monday i.e. 24/8/2009.

Learned counsel for the respondents shall inform the counsel for the parties about the date fixed.

Order Date :- 18.8.2009

SB

Court No. - 2

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Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal, Ravi Kant, Umesh Chandra
Kesarwani

Respondent Counsel :- H.P. Dube, B.C. Rai

Hon'ble Ashok Bhushan, J.

Hon'ble Ram Autar Singh, J.

Counter affidavit filed today be kept on the record. The petitioner may file rejoinder affidavit before the next date.

Sri H.P. Dubey, learned counsel appearing for the power corporation prays for and is allowed three days and no more time to file counter affidavit.

Put up this writ petition along with Writ Petition No.32927 of 2003 on 1st September, 2009. It is made clear that both the writ petitions will be heard and disposed of on the next date.

Order Date :- 25.8.2009

Rakesh

Court No. - 2

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Petitioner :- M/S Kesarwani Sheetalaya And Others

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal, Ravi Kant, Umesh Chandra Kesarwani

Respondent Counsel :- H.P. Dube, B.C. Rai

Hon'ble Ashok Bhushan, J.

Hon'ble Ram Autar Singh, J.

Heard Sri Ravi Kant, Senior Advocate assisted by Sri Umesh Chandra Kesarwani and Sri Mayank Agarwal for the petitioner, Sri B.C. Rai for respondent No.4 and Sri Pankaj Dubey holding brief of Sri H.P. Dubey for respondents No.1, 2 and 3.

Pleadings are complete and with the consent of the parties the matter has been heard finally. The parties are at liberty to file their written argument within a week.

Judgement is reserved.

Order Date :- 3.9.2009

Rakesh

Reserved on 03/9/2009

Delivered on 09/10/2009

Civil Misc. Writ Petition No.2309 of 2009.

M/s Kesarwani Sheetalaya & Ors.....Petitioners

Versus

**Purvanchal Vidyut Vitran Nigam Ltd & Ors
.....Respondents.**

With

**Civil Misc. Writ Petition No.32927 of 2003.
M/s Shiv Flour and Rice Mills.....Petitioner**

Vs.

State of U.P. & Ors.....Respondents

Hon'ble Ashok Bhushan, J.

Hon'ble R.A.Singh, J.

Heard Shri Ravi Kant, learned Senior Advocate assisted by Shri Mayank Agarwal and Shri Umesh Chandra Kesarwani in the first writ petition, Shri H.P. Dubey has appeared for respondent nos. 1 to 3 and Shri B.C. Rai, Advocate has appeared for respondent no.4. In the second writ petition Shri B.C. Rai, Advocate, holding brief of Shri M.P. Srivastava has appeared for the petitioner and Shri Ravi Kant, learned Senior Advocate assisted by Shri Mayank Agarwal and Shri Umesh Chandra Kesarwani for respondent nos.6 to 8 and Shri H.P. Dubey has appeared for respondent nos.2 to 5. The pleadings in the first Writ Petition 2309 of 2009, hereinafter referred to as the leading writ petition are complete and with the consent of the learned counsel for the parties writ petitions have been heard finally. The parties also agree that the Writ Petition No. 32927 of 2003 be also disposed of along with leading Writ Petition No. 2309 of 2009, because the issues raised in both the writ petitions are similar. For deciding both the writ petitions it is sufficient to note the pleadings in the leading writ petition. One M/s Phoolpur Sahkari Cold Storage, Sahson (hereinafter referred to as "Sahkari Cold Storage") applied for an independent feeder, which was to emanate from 132 KV Junsi Sub-station. The independent line was constructed and Sahkari Cold Storage started supply from that independent feeder. Sahkari Cold Storage was to bear the cost which was assessed by the U.P.Power Corporation of Rs. 67,650. Only part of the amount was deposited by Sahkari Cold Storage. The petitioner no. 1

in the year 1979 applied for 200 BHP load from 11 KV independent feeder emanating from 132 KV Jhunsi. The Executive Engineer asked for No Objection Certificate from Sahkari Cold Storage for connecting the petitioner no.1 with the independent feeder. A letter dated 02/4/1979 was written by the Executive Engineer to the Administrator Sahkari Cold Storage, copy of which has been filed as Annexure-1 to the writ petition. The Administrator gave its no objection by letter dated 03/4/1979 for connecting the petitioner no.1 subject to proportionate bearing of the amount which has been spent for obtaining power by Sahkari Cold Storage. Petitioners' case is that petitioner no. 1 deposited an amount of Rs.74086/- and thereafter a letter was written on 06/4/1979 for connecting the petitioner with independent feeder. The petitioner no.2 had also applied for fresh load of 176 KVA through the same independent feeder emanating from 132 KV Jhunsi Sub-station. The estimate was worked out for petitioner no.2. A letter dated 01/4/1980 was issued by the Executive Engineer with regard to petitioner no.2. Petitioner no.2 deposited the requisite amount as demanded for releasing the supply from 11 KV independent feeder line emanating from 132 KV Jhunsi, Sub-Station. No objection was also obtained by the petitioner no. 2 for being connected with the independent feeder. The respondent no.4, i.e. M/s Shiv Flour and Rice Mills, petitioner of Writ Petition No. 32927 of 2003, was sanctioned 175 HP. Respondent no.4 also made certain deposits requesting the petitioner no.1 to release supply from 11 KV independent feeder emanating from 132 KV Jhunsi Sub-station. Petitioner when came to know that the respondent no.4 has applied to give supply by independent feeder an objection dated 22/4/2003 was filed by the petitioner objecting that the respondent no.4 be not connected with the independent feeder. The General Manager, Power Corporation, Allahabad wrote a letter on 02/5/2003 asking certain clarifications from UPPC Ltd. Lucknow. The respondent no.4 was subsequently connected by rural feeder emanating from sub-station, Malawan Khurd and was getting supply from the said rural feeder. Writ Petition No. 32927 of 2003 was filed by the respondent no. 4, i.e. (M/s Shiv Flour and Rice Mills) in this Court on 27/7/2003. The writ petition was entertained on 01/8/20003 and thereafter has been pending in this Court. In the year

2008, respondent no.4 again made an application to the respondents for being connected with 11 KV independent feeder emanating from 132 KV Jhunsi, sub-station. It also appears that a letter was also sent by the respondent no.4 to the District Industries Centre, Allahabad who forwarded the application of the respondent no.4 to the Executive Engineer. The Executive Engineer on 04/12/2008, wrote to the General Manager District Industries Centre informing that supply to the respondent no.4 by 11 KV feeder is not possible referring to Clause 3.4(d) of the U.P. Electricity Supply Code, 2005. It appears that the respondent no.4 had also moved an application before the Hon'ble Minister of Energy praying that direction be issued for connecting his line with 11 KV independent feeder. On the said letter an endorsement dated 17/12/2008 was made by the Hon'ble Minister to the Chief Engineer, Allahabad directing for such connection as requested in the letter. On 20/12/2008, the Superintending Engineer referring to the endorsement of the Hon'ble Energy Minister directed the Executive Engineer to ensure the connection of respondent no.4 by the independent feeder.

In view of the aforesaid facts and circumstances Writ Petition No.2309 of 2009 has been filed by the petitioners praying for following reliefs:

“(a) issue a writ, order or direction in the nature of certiorari quashing the order dated 20/12/2008 passed by respondent no.2 (Annexure 12 to the writ petition).

(b) issue a writ, order or direction in the nature of mandamus directing the respondents no. 1 to 3 not to allow tapping of the respondent no. 4 from the 11 KV independent cold storage feeder of the petitioners emanating from 132 KV Jhunsi Sub-station of the petitioners.”

Shri Ravi Kant, learned Senior Advocate appearing for the petitioners challenging the action of the respondents made following submissions:

1. Petitioners' are receiving electric supply from independent feeder which was initially constructed as independent feeder to supply electricity to Sahkari Cold Storage with whom the petitioners were connected with the consent of Sahkari Cold Storage after payment of necessary charges. That the independent feeder from which petitioners are receiving supply, respondent no.4

cannot be connected since the petitioners have never given consent in favour of the respondent no.4. The order of the Superintending Engineer dated 20/12/2008 is in breach of para 3.4 of the U.P. Electricity Supply Code, 2005.

2. That the Executive Engineer and other officials of the Corporation having taken the view that the 11 KV independent feeder emanating from 132 KV Sub-station, Jhunsi being independent feeder, respondent no.4 cannot be connected with it and there was no justification for permitting connection to the respondent no.4 with the independent feeder only on endorsement by the Hon'ble Energy Minister on 17/12/2008. It is submitted that the Hon'ble Energy Minister had no authority to issue direction to the Corporation with regard to day to day functioning of the Corporation and the endorsement dated 17/12/2008 is not backed by any statutory provision.
3. It is submitted that the Corporation mechanically followed the direction dated 17/12/2008 for connection of the respondent no.4 with the independent feeder disregarding their own orders refusing such connection earlier.

Shri B.C. Rai, learned counsel appearing for respondent no.4 refuting the submissions of the learned counsel for the petitioners contended that direction for connecting the respondent no.4 with the independent feeder is fully in accordance with the provisions of law. It is submitted that the feeder which is being claimed by the petitioners as independent feeder is not actually an independent feeder. He submits that the expenses for construction of feeder was not borne by the Sahkari Cold Storage and it was constructed at the cost of U.P. State Electricity Board. It is submitted that the sanction letter has not been filed by the petitioners. Payment of Rs. 74086/- made by the petitioners in March, 1979 was without any demand. There are no details in the writ petition regarding the amount towards cost of construction of independent feeder. It is submitted that the respondents were fully justified to give connection to the other consumers from service line which service line is owned by the Corporation and not by the consumers. Reliance has been placed on para 4.29 of the U.P. Electricity Supply Code, 2005. Reliance is placed on the circular dated

16/6/1980 issued by the U.P. State Electricity Board as well as Regulation 7 of Electricity Supply (Consumer) Regulation, 1984 and para 2.2 (aa) of the U.P. Electricity Supply Code, 2002. It is further contended that Regulation 3.4 (d) is not applicable in the present case which clause is applicable in respect of tapping of feeders supplying Arc/Induction furnaces, Rolling Mills, Re-rolling and Mini Steel Plants. Reliance has also been placed by the learned counsel for the respondents on the Division Bench judgment of this Court in U.P. State Electricity Board Vs. Smt. Lakshmi Devi Sehgal & Anr, AIR 1977 All 499. It has been submitted that the independent feeder is a feeder which has been constructed for supplying to one consumer and the present feeder in which the three petitioners are connected cannot be said to be an independent feeder and hence no error has been committed by the respondents in directing the connection of supply to the respondent no.4 from 11 KV emanating from 132 KV Jhunsi, Sub-station.

The learned counsel appearing for the Corporation has supported the action taken by the Corporation on 20/12/2008, directing for connecting the respondent no.4. It has been submitted that by virtue of para 4.29, service line is owned by the Corporation and Corporation can give supply to any consumer. It has been submitted that the Hon'ble Minister can issue any direction and the same is capable of execution by the authorities or Corporation unless the same is contrary to some statutory provision. It is submitted that the direction of the Hon'ble Energy Minister not being contrary to any statutory provision the respondents have rightly directed for connecting the respondent no.4. It is submitted that feeder of Sahkari Cold Storage being tapped does not remain independent feeder. The submission made by Shri B.C. Rai appearing for respondent no.4 has also been adopted by the learned counsel for the Corporation.

We have considered the submission of the learned counsel for the parties and have perused the record.

From the submissions as raised by the learned counsel for the parties the main issues which needs determination is as to whether Clause 3.4(d) is applicable in the present case or not, and secondly as to whether 11 KV Cold Storage feeder from which the petitioners are

receiving supply is an independent feeder or not.

The UP Electricity Supply Code, 2005 has been framed under The Electricity Act, 2003. The relevant provisions which needs to be noted is definition of independent feeder as given in paras 2.2 (ff), 2(vv), 3.4 and 4.29 of Supply Code, 2005. Independent feeder is defined under 2.2(ff) and “Service Line” is defined under para 2.2(vv) which are quoted below:

“2.2(ff).”Independent feeder” in case of 11 KV supply supply voltage shall mean a feeder emanating from 33 KV or higher voltage sub-station, and in case of 33 kV supply voltage shall mean a feeder emanating from 132 KV or higher voltage sub-station, for supplying electricity to a single consumer, or a group of consumers having similar process, on the same or contiguous premises.

2.2(vv) “Service Line” means an electric supply line through which energy is, or is intended to be supplied by the Licensee from a distributing main to a single or group of Consumers from the same point of the distributing main.”

The relevant clause in the Supply Code, 2005 which regulates supply through independent feeders is para 3.4 which is quoted below:

“3.4. Supply through Independent feeders:

- (a) Load for Arc/Induction furnaces, Rolling Mills, Re-rolling Mills and Mini Steel Plants, of 1000 KVA and above, shall be released only through an independent feeder and all necessary charges including the feeder cost shall be paid by the consumer.
- (b) In other cases including townships/complexes, domestic or non-domestic or institutions, the supply may be given at independent feeder for load above 500 KVA, including those industries mentioned in clause 3.4(a) above but having load less than 1000 KVA, at the request of the consumer/applicant, if he is willing to bear all applicable charges, subject to technical feasibility and availability of bay/corridor at the sub-station. “

Provided that for releasing the supply to consumer/applicant on independent feeder, having load below 500 KVA, it shall depend on nature and purpose of supply such as emergency services, and such other reasons where continuity of supply is required by consumers, if the licensee so determines, the supply can be released depending on system constraints, technical feasibility, cost parameters as well as safeguarding the provisions of duty of supply on request as per Act.

- (c) [Deleted]
- (d) The licensee shall allow tapping of feeders supplying

Arc/Induction furnaces, Rolling Mills, Re-rolling Mills and Mini Steel Plants, with either of these plants, and this shall not be construed as change in process. The tapping of the independent feeder shall be permitted by licensee to other connection having a similar process subject to the following conditions:

- (i) Construction of separate feeder from the sub-station is not possible on account of non-availability of corridor, right of way and bay at the respective sub-station.
- (ii) Consent of original consumer has been obtained by prospective consumer for cost sharing of common portion of feeder with the prospective consumer.
- (iii) Quality of supply is not likely to be affected, and if technically feasible.
- (iv) The outdoor metering at the tapping point, and the additional cost due to changes in system shall be done at the cost of prospective consumer. However the cost credit due to removal of the existing system shall not be given to the consumers.
- (v) [Deleted]"

The submission of the petitioners is that the order dated 20/12/2008 is in breach of Clause 3.4(d). Petitioners having never given consent for sharing portion of feeder with respondent no.4 and Corporation itself never found it feasible to connect the respondent no.4 with the feeder whereas the counsel for the respondent no.4 submitted that Clause 3.4(d) is not applicable in the present case, since clause 3.4(d) is attracted only to feeders supplying Arc/Induction furnaces, Rolling Mills, Re-rolling and Mini Steel Plants. Clause 3.4(d) and the general conditions which are required to be fulfilled for tapping independent feeder whether shall apply only to supply of Arc/Induction furnaces, Rolling Mills, Re-rolling and Mini Steel Plants or these conditions have to be pressed in service for tapping of independent feeder with regard to other process is bone of contention between the parties.

Para 3.4(a) refers to Load for Arc/Induction furnaces, Rolling Mills, Re-rolling and Mini Steel Plants, of 1000 KVA and above, and Clause (b) refers to other cases including townships/complexes, domestic or non-domestic or institutions, the supply may be given at independent feeder for load above 500 KVA including those industries mentioned in clause 3.4(a) above but having load less than 1000 KVA. A conjoint reading of the entire clause indicates that sub-clause (d) refers to supply through independent feeder regarding both the categories as mentioned in sub-clauses (a) and (b). Sub-clause (d) of

clause 3.4 governs both clauses (a) and (b). The submission cannot be accepted that clause (d) only refers to Arc/Induction furnaces, Rolling Mills, Re-rolling and Mini Steel Plants etc. of 1000KVA and above, whereas clause (b) also refers to supply for independent feeder including townships/complexes, domestic or non-domestic or institutions, the supply may be given at independent feeder for load above 500 KVA including those industries mentioned in clause 3.4(a) above but having load less than 1000 KVA. Thus, the applicability of clause (d) cannot be restricted only to Arc/Induction, furnaces etc. Thus, for supplying through independent feeder conditions as mentioned in sub-clause (d) have to be fulfilled.

In the present case, it is not even disputed that conditions as mentioned in sub-clause (d) of Clause 3.4 have not been complied with. The petitioners have never consented rather have objected to connection of respondent no.4 with the independent cold storage feeder. The submission which has been pressed by the respondent no.4 for supporting the action of the respondents further is that the feeder through which all the petitioners are connected i.e. Cold Storage Feeder is not an independent feeder. Basically two arguments have been pressed by the counsel for the respondents. Firstly, the petitioners never borne the cost of construction of the feeder and secondly, the independent feeder is a feeder which supplies to only one consumer and when more than one consumer has been connected with the feeder the feeder does not remain independent feeder.

Now coming to the submission of deposit of the cost by the petitioners for construction of independent feeder the relevant pleadings of the parties indicate that feeder was constructed for supplying electricity to Sahkari Cold Storage and the cost which was to be paid by Sahkari Cold Storage was Rs. 67,650/- out of which some of the amount was paid. When the petitioner no.1 made an application for being connected with the feeder from which Sahkari Cold Storage was getting the supply consent of Sahkari Cold Storage was also obtained. The letter dated 02/4/1979, Annexure 1 which was written by the Executive Engineer Electricity Distribution Division Allahabad to Administrator Phoolpur Sahson Cold Storage, Sahson clearly mentions that "Phoolpur Sahson Cold Storage is getting power from independent feeder feeding

from 132 KV, substation Jhunsi.” Permission was also granted by Administrator Phoolpur Sahkari Cold Storage to the petitioners subject to proportionate payment of amount spent for obtaining power by Sahkari Cold Storage. There is sufficient material to indicate that payment of Rs. 74,086/- was made by the petitioners on 08/3/1979. Another letter dated 06/4/1979 written by the Executive Engineer also mentions that connection can only be given to the petitioner no.1 when the deposit of entire charge from independent feeder is made. Petitioner no. 1 was subsequently connected with the independent feeder, thus it is clear that whatever the charges were required were paid by the petitioner no.1 and only petitioners were connected with the independent feeder the deposit by the petitioner nos. 2 and 3 while connecting with the cold storage feeder is also on the record. The Executive Engineer, U.P.S.E.B. in the year 1979 has itself referred the feeder feeding the Sahkari Cold Storage as an independent feeder, petitioners were subsequently connected with the said feeder. The submission which has been pressed by the learned counsel for the respondents is that there was no definition of independent feeder earlier to Supply Code, 2002 either in Electricity Act, 1910 or in Electricity Supply Act, 1948. The said word was used by Field Officers denoting the electricity line for carrying electricity to one consumer and since more than one consumers are connected with the feeder, the same is not an independent feeder. The definition in para 2.2 (aa) of Electricity Supply Code, 2002 has also been relied which defines the Independent Feeder constructed at the cost of consumers and supplying electricity only to that consumer. The definition of Electricity Supply Code, 2005 in para 22(ff) clearly provides independent feeder in case of 11 KVA Supply Voltage shall be a feeder for supplying electricity to a single consumer or group of consumers having similar process at the same or contiguous premise. Thus, according to Supply Code, 2005, the feeder in question is fully covered by definition of independent feeder. The direction to connect with the respondent no.4 with the feeder was issued on 20/12/2008 when the Supply Code, 2005 was enforced. The feeder is fully covered by the definition of independent feeder and the submission of the learned counsel for the respondents that the feeder is not an independent feeder by virtue of earlier definition under the 2002

Code cannot be accepted. The Division Bench judgement of this Court in Smt. Lakshmi Devi Sehgal (supra) was a case where the Division Bench considered the issue as to whether the transformer is a part of ("Service Line") The Division Bench laid down following in para 9 which is quoted below:

"The Electricity Supply Act, 1948 draws a distinction between "Main transmission line" and Service Line". It is only the cost of the "Service Line" which the prospective consumer has to bear, before the Board complied with his requisition for supply of electricity. Analysed in that manner, we should hold that the transformer is not the part of "Service Line" and that the Board having once commenced the supply it has to maintain the "Service Line". Neither does 1910 Act nor the Electricity (Supply) Act, 1948 authorise the Board in our opinion to demand the replacement cost of the transformer."

The above case thus is not relevant for deciding the controversy which has come up for consideration in the present case. Para 4.29 on which the respondents have also placed reliance needs to be considered. Para 4.29 as extracted above provides efficacy to use the service line and other apparatus to give supply to other consumer provided that the supply to the consumers which is paid for them is not affected. The word "service line" has been defined in 22(vv) of 2005, Code. The word "service line" and the word "independent feeder" are two separate concepts and both paras 4.29 and 3.4 of Supply Code 2005 has to be given harmonious construction so that both the provisions can survive and be implemented. In case the interpretation put by the respondents that the "service line" of the consumers can be utilised by licensee providing supply to other consumers replaced by other condition as laid down in 3.4 is accepted, the conditions as mentioned in 3.4 becomes redundant. Thus para 4.29 in no manner affect the conditions as required to be fulfilled for supply through independent feeder as laid down in para 3.4. Although the submission has been made by Shri Ravi Kant, learned Senior Counsel that the direction issued by Hon'ble Minister on 17/12/2008 for connecting the respondent no.4 was without any authority or jurisdiction, it is not necessary to further dwell into the matter since according to the stand taken by the Corporation themselves in the counter affidavit it is clear that the Corporation is bound to carry all lawful directions of the Hon'ble

Minister which are not contrary to the statutory provisions. In view of foregoing discussion that the action of the respondents is not in accordance with para 3.4 of Supply Code 2005, it was not obligatory for the respondents to direct for reconnection. Furthermore, the endorsement was made by the Hon'ble Minister on 07/12/2008 and thereafter on 20/12/2008, direction was issued by the Executive Engineer referring to the endorsement made by the Hon'ble Minister without examination of relevant factors and evidence for connecting the line with independent feeder. Thus, the submission of the petitioners has substance that after receiving the endorsement made by the Hon'ble Minister mechanically Corporation has proceeded to direct for connection. It is also relevant to note that on 04/12/2008, Executive Engineer has written a letter to the General Manager, District Industries Centre that it is not possible to connect the respondent no.4 with the with Cold Storage Independent Feeder due to para 3.4(d) of Supply Code, 2005. Thus, the respondents without adverting to the relevant provisions of the Code directed for reconnection on 20/12/2008, which decision deserves to be set-aside on this ground also. One more relevant factor which has been emphasised by the learned counsel for the petitioner is regarding feeder being independent feeder needs to be noted is that throughout the Corporation has taken the stand that the feeder supplying to Sahson Cold Storage is an independent feeder which is apparent from the letter dated 02/4/1979, Annexure-1 as well as the letter dated 06/4/1979, Annexure-5 to the writ petition and even the impugned order dated 20/12/2008 refers to the feeder as independent feeder. In the rejoinder affidavit, petitioners have also brought on record the bills which have been paid by the petitioners which clearly mentions charging of 15 percent extra charge of independent feeder in the bills. The respondents throughout having taken the stand that feeder supplying electricity to the Sahson Cold Storage is an independent feeder, the contrary stand taken in the counter affidavit by the Corporation cannot be accepted.

In view of the aforesaid discussion, we are satisfied that the order dated 20/12/2008 cannot be sustained and it is hereby set-aside. For the reasons given above no relief can be given to the petitioners in Writ Petition No. 32927/2003, M/s Shiv Flour and Rice Mills and the same

deserves to be dismissed. In the result Writ Petition No. 2309 of 2009 is allowed. Order dated 20/12/2008, Annexure-12 is set-aside and Writ Petition No. 32927/2003, M/s Shiv Flour and Rice Mills is dismissed.

Parties shall bear their own costs.

09/10/2009

SB